

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
MITCHELL MCKENZIE AND FRANK BUIE,

Plaintiff(s),

- against -

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, DET. KELVIN WINTERS
OF THE 49TH PCT, DET. SQUAD, SHIELD # 4788,
TAX ID # 961582, P.O. FRANCISCO RODRIGUEZ
OF THE 40TH PCT, SHIELD # 6131, TAX ID # 970818
AND P.O. "JOHN DOE" 1-6, names of Police Officers
unknown,

Defendant(s).
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Index No.:

Date Purchased:

VERIFIED COMPLAINT

Plaintiffs, by their attorneys, GETZ & BRAVERMAN, P.C., complaining of the Defendant,
respectfully alleges, upon information and belief:

1. That at the time of the commencement of this action, Plaintiff **MITCHELL MCKENZIE** resided in the County of New York, City and State of New York.
2. That at the time of the commencement of this action, Plaintiff **FRANK BUIE** resided in the County of Kings, State of New York .
3. That the cause of action alleged herein arose in the County of Bronx, City and State of New York.
4. That on October 26, 2023, and at all times herein mentioned, Defendant **THE CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT** was, and still is, a municipal corporation.

5. Upon information and belief, and at all times hereinafter mentioned, **NEW YORK CITY POLICE DEPARTMENT**, its agents servants and employees supervised, maintained and controlled its personnel.
6. Upon information and belief, at all times mentioned, Defendants **DET. KELVIN WINTERS OF THE 49TH PCT, SHIELD # 4788, TAX ID # 961582 AND P.O. FRANCISCO RODRIGUEZ OF THE 40TH PCT, SHIELD # 6131, TAX ID # 970818**, were and are police officers of the Defendant City of New York, and at all times herein were acting in such capacity as the agents, servants and employees of the Defendant, **THE CITY OF NEW YORK**.
7. That on November 29, 2023, and within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained, together with Plaintiff's demands for adjustment thereof was duly served on the Plaintiff's behalf on the Comptroller for the City of New York and that thereafter said Comptroller for the City of New York refused or neglected for more than thirty (30) days, and up to the commencement of this action, to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.
8. That on May 7, 2024 and May 16, 2024, pursuant to General Municipal Law 50(h), hearings was held at the Office of the Comptroller or at the office of a designated agent.
9. That this action is being commenced within one year and ninety days after accrual of this cause of action, or within the time allowed by law.

AS AND FOR THE FIRST CAUSE OF ACTION

10. Plaintiffs repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "9" with the same force and effect as if more fully set forth herein.
11. That on or about October 26, 2023, Plaintiff, **MITCHELL McKENZIE AND FRANK BUIE**, were wrongfully and falsely arrested, detained, and imprisoned, without any right or grounds therefore.
12. That on or about October 26, 2023, the defendants acting within the scope and authority of their employment and office, wrongfully and falsely accused the plaintiffs, **MITCHELL McKENZIE AND FRANK BUIE**, of the crimes of possession of a fire a weapon on second, third and fourth degree, criminal possession of fire arm and possession of ammunition.
13. Upon information and belief, on or about October 26, 2024 and from that time until the dismissal of charges which was a favorable termination for the accused by the Bronx County Criminal Court, Defendants **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, DET. KELVIN WINTERS OF THE 49TH PCT, DET. SQUAD, SHIELD # 4788, TAX ID # 961582, P.O. FRANCISCO RODRIGUEZ OF THE 40TH PCT, SHIELD # 6131, TAX ID # 970818 AND P.O. "JOHN DOE" 1-6, names of Police Officers unknown**, deliberately and maliciously prosecuted Plaintiff **MITCHELL McKENZIE AND FRANK BUIE**, two innocent males without any probable cause whatsoever, by filing or causing a criminal court complaint to be filed in the Criminal Court of the City of New York, Bronx County, for the purpose of falsely

accusing the plaintiff of violations of the criminal laws of the State of New York.

14. That Defendants **THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, DET. KELVIN WINTERS OF THE 49TH PCT, DET. SQUAD, SHIELD # 4788, TAX ID # 961582, P.O. FRANCISCO RODRIGUEZ OF THE 40TH PCT, SHIELD # 6131, TAX ID # 970818 AND P.O. "JOHN DOE" 1-6, names of Police Officers unknown**, lied in the Grand Jury, when they testified that Plaintiffs **MITCHELL McKENZIE AND FRANK BUIE** possessed a firearm that the Defendants claimed was found under a car. This testimony by the Defendants was false.
15. That the said arrest and imprisonment of Plaintiffs, **MITCHELL McKENZIE and FRANK BUIE** were caused by the said defendants, their agents, servants and employees, without legal process, without authority of the law and without any reasonable cause, or belief, that the plaintiffs, **MITCHELL McKENZIE AND FRANK BUIE**, were in fact guilty of such crimes.
16. That the said arrest of the Plaintiffs herein was caused, allowed and permitted by the Defendants herein, their agents, servants and/or employees, wrongfully, unlawfully, against the plaintiff's wishes, without probable or reasonable cause, and on the charges having been made.
17. That the defendant, their agents, servants and/or employees falsely arrested the plaintiffs, compelled them to go with New York City Police officers pursuant to the instruction and will of the above named defendants, detained and imprisoned plaintiff at other diverse places and times, including, but not limited to, precinct in the station-house in the County of Bronx, City and State of New York and Central Booking located in the Borough of Bronx,

City and State of New York.

18. That the said defendants, their agents, servants and/or employees, acting within the scope of their authority and within the scope of their employment, caused the plaintiffs herein to be arrested, detained and imprisoned, even though the defendants, their agents, servants and/or employees, had the opportunity to know, or should have known, that the matters herein-before alleged, wrongfully, unlawfully and without a sufficient charge having been made against the plaintiffs, directed that the plaintiff be, arrested, searched, detained and placed in confinement at said locations.
19. That as a result of the aforesaid accusations made by the said defendants, their agents, servants and employees, acting under the scope of their office and within the scope of their authority, Plaintiffs **MITCHELL McKENZIE and FRAN BUIE** were falsely, publicly, and maliciously accused.
20. That the defendants, their agents, servants and/or employees, as set forth on the aforementioned date, time and place, intended to cause the arrest, detention and imprisonment of the plaintiff herein; plaintiffs were conscious of the said arrest, detention, and imprisonment; and that said arrest, detention and imprisonment was not otherwise privileged.
21. That the aforesaid occurrence, false arrest and imprisonment of the plaintiffs, were caused wholly and solely by reason of the negligence of the defendants, their agents, servants and/or employees without any negligence of the part of the plaintiffs herein.
22. That by reason of the aforesaid, the plaintiffs were subjected to great indignities, humiliation and ridicule; was greatly injured in their credit and circumstances; was prevented from performing and transacting his necessary affairs and business; and was incapacitated from

their usual occupation.

23. That by reason of the aforesaid, the plaintiffs have been damaged in an amount which exceeds the jurisdictional limits of all lower courts which otherwise would have jurisdiction.

AND AS FOR A SECOND CAUSE OF ACTION

24. Plaintiffs repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "23", with the same force and effect as if more fully and at length set forth herein.
25. That on or about the October 26, 2023, and prior and subsequent thereto, in the County of Bronx City and State of New York, the defendants, acting within the scope and authority of their office and employment, carelessly, recklessly, maliciously and negligently caused, permitted, allowed, created and instigated the prosecution, and continuing prosecution, of the plaintiffs with deliberate indifference.
26. That the plaintiffs were wholly innocent, and was forced by the defendants, their agents, servants and/or employees, to submit to lengthy Court proceedings.
27. That on or about the 26th day of October, 2023, and prior and subsequent thereto, the defendants, their agents, servants and employees falsely and maliciously, without probable cause or provocation charged the plaintiff with various crimes, including felonies, misdemeanors and violations.
28. That Defendants **DET. KELVIN WINTERS OF THE 49TH PCT, DET. SQUAD, SHIELD # 4788, TAX ID # 961582, P.O. FRANCISCO RODRIGUEZ OF THE 40TH PCT, SHIELD # 6131, TAX ID # 970818**, lied when they testified that Plaintiffs

MITCHEL McKENZIE AND FRANK BUIE possessed a firearm that the Defendants claimed was found underneath a vehicle. This testimony by the Defendants was false.

29. That the said prosecution, criminal charges and hearings were instituted and procured by the defendant, their agents, servants and/or employees in this action unlawfully, maliciously and without reasonable or probable cause, with actual malice and was terminated in plaintiffs' favor.
30. That the aforesaid occurrence, false arrest, imprisonment of the plaintiffs and malicious prosecution, was caused solely and wholly by reason of the negligence of the defendant's, their agents, servants and/or employees without any negligence on the part of the plaintiffs.
31. That by reason of the aforesaid, the plaintiffs still suffers and, upon information and belief will continue to suffer, great indignities, humiliation and ridicule; was greatly injured to their credit and circumstances; was prevented from performing and transacting their necessary affairs and business; and was incapacitated from their usual occupations. Upon information and belief, the plaintiffs have expended diverse sums of monies, in an effort to extricate themselves from the imprisonment, indignities and humiliation foisted upon them by the action of the defendants, their agents, servants and employees, including counsel fees and disbursements; and, upon information and belief, will expend further sums in that direction.
32. That by reason of the aforesaid, the plaintiffs have been damaged in an amount which exceeds the jurisdictional limits of all lower courts which otherwise would have jurisdiction.

AS AND FOR A THIRD CAUSE OF ACTION

33. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "32", with the same force and effect as if more fully set forth herein.

34. That the defendant, **NEW YORK CITY POLICE DEPARTMENT**, acting within the scope and authority of its office and employment, their agents, servants and/or employees recklessly, carelessly and negligently, performed their duties as police officers, in that they failed to use such care in the performance of their duties as reasonably prudent and careful police officers would have used under similar circumstances; in that they were reckless, careless, and negligent in the manner in which they declared the plaintiff in violation of the law by; in that they caused, permitted and allowed the plaintiff to be, pursued, apprehended, detained, prosecuted and imprisoned in violation of his civil rights; in that they used the threat of imprisonment, and actually caused the imprisonment of the plaintiff, in that they made false accusations on or about October 26, 2023; in that they caused the imprisonment of the Plaintiffs in that the defendants, their agents, servants and/or employees were otherwise careless, reckless and negligent.
35. That the defendant, **NEW YORK CITY POLICE DEPARTMENT**, acting within the scope and authority of its office and employment, their agents, servants and/or employees recklessly, carelessly and negligently, performed their duties as police officers, in that they failed to use such care in the performance of their duties as reasonably prudent and careful police officers would have used under similar circumstances; in that they caused, permitted and allowed the plaintiff to be, pursued, apprehended, detained, prosecuted and imprisoned in violation of his civil rights; in that they used the threat of imprisonment, and actually caused the imprisonment of the plaintiff, in that they made false accusations on or about October 26, 2023, in that the defendants, their agents, servants and/or employees failed to recognize that plaintiffs' right had been unjustly violated, and in that the defendants,

their agents, servants and/or employees were otherwise careless , reckless and negligent.

36. That the aforesaid occurrence, false arrest and imprisonment of the plaintiff, malicious prosecution, and negligent performance of duties, was caused solely and wholly by reason of the negligence of the defendants, their agents, servants and/or employees without any negligence on the part of the plaintiff herein.
37. That by reason of the aforesaid, the plaintiff has been subjected to great indignities, humiliation and ridicule; was greatly injured in his credit and circumstances; was prevented from performing and transacting his necessary affairs and business. Upon information and belief plaintiff has expended diverse sums of monies and incurred debt, in an effort to extricate himself from the imprisonment, indignities and humiliation foisted upon him by the actions of the defendants, their agents, servants and employees, including counsel fees and disbursements.

AND AS FOR A FOURTH CAUSE OF ACTION

38. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "37" inclusive with the same force and effect as if more fully and at length set forth herein.
39. That the defendants, **THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT**, were careless, reckless and negligent in hiring and retaining its employees, in that the said defendants' employees lacked the experience, deportment and ability to be employed by the defendant; in that the defendants failed to exercise due care and caution in their hiring practices, and in particular, hiring the police officers involved who lacked the mental capacity and the ability to function as employees of the

aforementioned defendants; in that the defendant lacked the maturity, sensibility and intelligence to be employed by the defendants; in that the defendants knew of the lack of ability, experience, department and maturity of said defendants' employees when they hired them to be employees; and in that the defendants, their agents, servants and employees were otherwise careless, reckless and negligent.

40. That the defendants, **THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT**, were careless, reckless and negligent in hiring and retaining its employees, in that the said defendants' employees lacked the experience, savvy, knowledge, deportment and ability to be employed by the defendant, **NEW YORK CITY POLICE DEPARTMENT**; in that defendants failed to exercise due to care and caution in their hiring practices, and in particular, hiring the police officers involved who lacked the mental capacity and the ability to function as employees of the aforementioned defendant; in that the defendants lacked the maturity, sensibility and intelligence to be employed by the defendant; in that the defendants knew of the lack of ability, experience, deportment and maturity of said defendants' employees when they hired them to be employees; and in that the defendants, their agents, servants and employees were otherwise careless, reckless and negligent.
41. That the aforesaid occurrence, the false arrest and imprisonment, malicious prosecution, negligence in performance of duties and negligence in hiring and retention and the resulting injuries to mind therefrom, were caused wholly and solely by reason of the negligence of the defendants, their agents, servants and employees without any negligence on the part of the plaintiff.

42. That by reason of the aforesaid, the plaintiff have been subjected to indignities and humiliation was greatly injured in their credit and circumstances caused by the actions of the defendants, their agents, servants and employees, including counsel fees and disbursements, and upon information and belief, will expend further sums in that direction.
43. That by the reason of the aforesaid, the plaintiffs have been damaged in an amount which exceeds the jurisdictional limits of all lower courts which otherwise would have jurisdiction.

AND AS FOR A FIFTH CAUSE OF ACTION

44. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "43" inclusive with the same force and effect as if more fully and at length set forth herein.
45. That the defendants **THE CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT**, acting within their scope and authority of their office and employment, in their capacity as a law enforcement office, was negligent and careless in the supervision, maintenance and control of police officers under their supervision and more particularly the supervision of the members of **NEW YORK CITY POLICE DEPARTMENT**, in that the defendants failed to exercise due care and caution in their supervision of same and in particular causing, permitting and allowing police officers under their supervision, and more particularly the defendants' agents, servants, employees and/or licensees, to act in a careless, reckless and negligent manner without administering proper control, discipline and supervision thereby allowing police officers involved herein, to act in an unlawful and illegal manner; in causing, permitting and allowing persons within the employ of the **CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT**, search plaintiffs,

MITCHELL McKENZIE AND FRAN BUIE, in that the defendants knew, or should have known, of the lack of ability, experience, deportment and maturity of the said defendant police officers under their care, supervision and control and more particularly those police officers with a propensity to act in unlawful and illegal manner; and that said agents, servants and employees failed to properly investigate actions taken by police officers under their care, supervision and control, and were otherwise careless and negligent.

46. That the aforesaid occurrence, false arrest and imprisonment of the plaintiffs, malicious prosecution, negligent performance of duties, negligent hiring and retention and negligent supervision and training, was caused solely wholly by reason of the negligence of the defendants, their agents, servants and/or employees without any negligence on the part of the plaintiff herein.
47. That by reason of the aforesaid, the plaintiff has been subjected to great indignities, humiliation and ridicule, was greatly injure in their credit and circumstances; was prevented from performing and transacting his necessary affairs and business; and was prevented to perform his usual occupation. Upon information and belief, plaintiffs have expended and incurred diverse sums of money in an effort to extricate themselves from the indignities and humiliation imposed upon him by the actions of the defendants, their agents, servants and employees, including counsel fees and disbursements, and upon information and belief, will expend further sums in that direction.
48. That by the reason of the aforesaid, the plaintiffs have been damaged in an amount which exceeds the jurisdictional limits of all lower courts which otherwise would have jurisdiction.

AND AS FOR A SIXTH CAUSE OF ACTION

49. Plaintiffs repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "48" inclusive with the same force and effect as if more fully and at length set forth herein.
50. That on or about October 26, 2024, in the County of Bronx, City and State of New York, at which time and place Defendants **DET. KELVIN WINTERS OF THE 49TH PCT, SHIELD # 4788, TAX ID # 961582 AND P.O. FRANCISCO RODRIGUEZ OF THE 40TH PCT, SHIELD # 6131, TAX ID # 970818**, were acting within the scope of their employment, authority and office as part of their regular and official employment as employees for defendants, **THE CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT**.
51. As plaintiff s were lawfully and properly enjoying his right as a citizen of the United States of America, said defendants' employees of New York City Police Department, Defendants **DET. KELVIN WINTERS OF THE 49TH PCT, SHIELD # 4788, TAX ID # 961582 AND P.O. FRANCISCO RODRIGUEZ OF THE 40TH PCT, SHIELD # 6131, TAX ID # 970818**, who having the real and apparent ability to cause imminent harmful and offensive injury, and the power and authority to warrant for the arrest, detention, prosecution and imprisonment of the Plaintiff, did so threaten these acts upon the plaintiff, and did so cause the plaintiff herein to be arrested, detained, prosecuted and imprisoned, stripped and searched and in violation of plaintiff's civil rights; in ailing to recognize, detect and investigate same; in revoking the rights of the plaintiff herein; in failing to train, monitor, control and/or supervise their agents, servants and/or employees; and in prosecuting and

continuing to prosecute the plaintiff.

52. That defendants, **DET. KELVIN WINTERS OF THE 49TH PCT, SHIELD # 4788, TAX ID # 961582 AND P.O. FRANCISCO RODRIGUEZ OF THE 40TH PCT, SHIELD # 6131, TAX ID # 970818**, failed to properly and adequately ascertain that plaintiffs were not in violation of the law and that plaintiff was detained, prosecuted and imprisoned for an extended period of time, depriving them of their rights and liberties as set forth in the Constitutions of the United States of America and of the State of New York, handcuffed them and threatened plaintiffs with the possible use of firearms and weapons and the use of physical force; in that they continued to detain, prosecute and to imprison, the plaintiffs without any conduct on the part of the plaintiff to so warrant, to wit: in that all the actions of the defendants, their agents, servants and/or employees, acting within scope and authority of their employment and office, committed with the intention to cause economic and mental injury to the plaintiffs, arrested, detained, prosecuted and imprisoned the without their consent; plaintiffs were at all times conscious of his arrest, detainment, prosecution and imprisonment did not consent to the arrest, detainment, prosecution and imprisonment; and the arrest, detainment, prosecution and imprisonment was not otherwise privileged;

b) the arrest, detention, prosecution and imprisonment were not justified by probable cause or other legal privilege; defendants, their agents, servants and employees, acting under the color of the statute, ordinances, regulations, customs and usages of the he United States of America, the State of New York, City of New York and County of New York, within the

scope of their employment and under the authority of their office as employees of The New York City Police Department for said state.

- c) that the defendants, their agents, servants and/or employees, acting within the scope and authority of their office and employment, caused and unlawful arrest, detention, prosecution and imprisonment of the plaintiff thus depriving them of their freedom and civil rights as guaranteed by the Constitution of the United States of America when they in a willful, wanton, reckless, careless and negligent manner deprived the plaintiffs of their due process, liberty and freedom without his consent and with the intention of causing harm and deprivation of his freedom and civil liberties, all without warrant, probable cause whatever; and,
- d) that the defendants, their agents, servants and employees failed to adequately and properly train, supervise, monitor, discipline or in any way.

53. Defendants, **DET. KELVIN WINTERS OF THE 49TH PCT, SHIELD # 4788, TAX ID # 961582 AND P.O. FRANCISCO RODRIGUEZ OF THE 40TH PCT, SHIELD # 6131, TAX ID # 970818**, did not have probable cause to arrest, detain, prosecute and imprison the plaintiffs before, after or at the time of this incident and deprive plaintiffs of their Constitutional rights as set forth in the Constitutional rights

as set forth in the Constitutions of the United States, particularly 42 U.S.C. Sec. 1983 and the Constitution of the United States of America.

54. Defendants, **DET. KELVIN WINTERS OF THE 49TH PCT, SHIELD # 4788, TAX ID # 961582 AND P.O. FRANCISCO RODRIGUEZ OF THE 40TH PCT, SHIELD # 6131, TAX ID # 970818**, did not have probable cause to arrest, detain, prosecute and imprison plaintiff before, after or at the time of this incident, and failed to properly safeguard the plaintiffs' Constitutional rights as set forth in the Constitution of the United States, particularly 42 U.S.C. Sec. 1983 and the Constitution of the State of New York.
55. As a direct result of the aforesaid actions and conduct of the part of the said defendants, **DET. KELVIN WINTERS OF THE 49TH PCT, SHIELD # 4788, TAX ID # 961582 AND P.O. FRANCISCO RODRIGUEZ OF THE 40TH PCT, SHIELD # 6131, TAX ID # 970818**, plaintiffs were falsely arrested, detained, prosecuted and imprisoned and was compelled to be arraigned and appear in the Criminal Court system of the City and State of New York, County of Bronx and to undergo a criminal proceeding(s).
56. That Defendants **DET. KELVIN WINTERS OF THE 49TH PCT, SHIELD # 4788, TAX ID # 961582 AND P.O. FRANCISCO RODRIGUEZ OF THE 40TH PCT, SHIELD # 6131, TAX ID # 970818**, lied when they testified that Plaintiffs **MITCHELL McKENZIE AND FRANK BUIE** possessed a firearm that the Defendants claimed was found under a seat in the back of a vehicle in which Plaintiffs were lawfully sitting in. This testimony by the Defendants was false.

57. That at all times hereinafter mentioned, the defendants, **DET. KELVIN WINTERS OF THE 49TH PCT, SHIELD # 4788, TAX ID # 961582 AND P.O. FRANCISCO RODRIGUEZ OF THE 40TH PCT, SHIELD # 6131, TAX ID # 970818**, were employed in their respective capacities by the New York City Police Department and were acting within the scope and authority of their office and employment under the color of their official capacity and their acts were performed under the color of the policies statutes, ordinances, rules and regulations of the New York City Police Department.
58. That at all times hereinafter mentioned, defendants, **DET. KELVIN WINTERS OF THE 49TH PCT, SHIELD # 4788, TAX ID # 961582 AND P.O. FRANCISCO RODRIGUEZ OF THE 40TH PCT, SHIELD # 6131, TAX ID # 970818**, were acting pursuant to orders and directives from defendants, **THE CITY OF NEW YORK AND NEW YOR CITY POLICE DEPARTMENT** and acting within the scope and authority of his/their employment and office.
59. That at all times hereinafter mentioned, defendants, **DET. KELVIN WINTERS OF THE 49TH PCT, SHIELD # 4788, TAX ID # 961582 AND P.O. FRANCISCO RODRIGUEZ OF THE 40TH PCT, SHIELD # 6131, TAX ID # 970818**, were acting pursuant to orders and directives from defendants, **THE CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT** within the scope and authority of their employment and office.
60. That at all times hereinafter mentioned, defendants, **DET. KELVIN WINTERS OF THE 49TH PCT, SHIELD # 4788, TAX ID # 961582 AND P.O. FRANCISCO**

RODRIGUEZ OF THE 40TH PCT, SHIELD # 6131, TAX ID # 970818, were acting pursuant to, and within the scope and authority of their employment and office.

61. That during all times hereinafter mentioned, the defendants, **DET. KELVIN WINTERS OF THE 49TH PCT, SHIELD # 4788, TAX ID # 961582 AND P.O. FRANCISCO RODRIGUEZ OF THE 40TH PCT, SHIELD # 6131, TAX ID # 970818,** and each of them separately, and in concert, acted under color and pretense of law, to wit: under color of the statutes, ordinances, regulations, customs and usages of New York City Police Department and the defendants herein, separately and in concert, engaged in the reckless, careless and negligent conduct herein mentioned to the injury and detriment of the plaintiffs and deprived plaintiffs by the First and Fourteenth Amendments to the Constitution of the State of New York and the laws of the City and State of New York.
62. The defendants, **DET. KELVIN WINTERS OF THE 49TH PCT, SHIELD # 4788, TAX ID # 961582 AND P.O. FRANCISCO RODRIGUEZ OF THE 40TH PCT, SHIELD # 6131, TAX ID # 970818,** were employed by the defendants, **THE CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT,** acting under color of law, have subjected plaintiffs and other persons to a pattern of conduct consisting of false arrest, detention, prosecution and imprisonment and that said defendants, **DET. KELVIN WINTERS OF THE 49TH PCT, SHIELD # 4788, TAX ID # 961582 AND P.O. FRANCISCO RODRIGUEZ OF THE 40TH PCT, SHIELD # 6131, TAX ID # 970818,** did not confer due process upon the plaintiffs

herein, and in denied the rights, privileges and immunities guaranteed plaintiffs and other citizens of the United States of America by the Constitution of the United States of America.

63. This systematic pattern of conduct consists of a large number of individual acts of violations of plaintiff's civil rights, and other citizens, by employees of **NEW YORK CITY POLICE DEPARTMENT** and more particularly the defendants, **DET. KELVIN WINTERS OF THE 49TH PCT, SHIELD # 4788, TAX ID # 961582 AND P.O. FRANCISCO RODRIGUEZ OF THE 40TH PCT, SHIELD # 6131, TAX ID # 970818**, in acting in concert with persons unknown to the plaintiffs and under color of law, and said acts, while carried out under color of law, within the scope and authority of their office and employment, having no justification or excuse in law and are instead reckless, careless and negligent, unrelated to any activity in which police officers may properly, appropriately and legally engage in the course of protecting persons or property or ensuring civil order.
64. Although defendants **THE CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT**, knew or should have known of the fact that this pattern of conduct was carried out by, **DET. KELVIN WINTERS OF THE 49TH PCT, SHIELD # 4788, TAX ID # 961582 AND P.O. FRANCISCO RODRIGUEZ OF THE 40TH PCT, SHIELD # 6131, TAX ID # 970818**, have not taken any steps or made any efforts to halt this course of conduct, to make redress to the plaintiff or other Citizens injured thereby, or to take any disciplinary action whatever against any of their employees or agents.

65. The conduct of the defendants, **DET. KELVIN WINTERS OF THE 49TH PCT, SHIELD # 4788, TAX ID # 961582 AND P.O. FRANCISCO RODRIGUEZ OF THE 40TH PCT, SHIELD # 6131, TAX ID # 970818**, deprived plaintiffs of the following rights, privileges and immunities secured to them the Constitution of the United States and of the State of New York:

- a) The right of plaintiffs to be informed of the nature and cause of the accusation against them as secured to him under the Sixth and Fourteenth Amendments of the Constitution of the United States; and
- b) The right of plaintiffs no to be deprived of life, liberty or property without due process of law, and the right to the equal protection of the laws secured by the fourteenth Amendment to the Constitution of the United States.

66. That by reason of the aforesaid negligence, false arrest and false imprisonment, malicious prosecution, negligent performance of duties, negligent hiring and retention, negligent training and supervision, and violation of civil rights caused by the defendants, **THE CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT, DET. KELVIN WINTERS OF THE 49TH PCT, SHIELD # 4788, TAX ID # 961582 AND P.O. FRANCISCO RODRIGUEZ OF THE 40TH PCT, SHIELD # 6131, TAX ID # 970818**, acting within the scope and authority of their office and employment, who conspired together to enter into a nefarious scheme to wrongfully deprive the plaintiffs, and compel him to abandon his rights and

privileges as provided to them in the Constitution of the United States of America, and provided to him in the Constitution of the State of New York, and laws thereto, the defendants, **THE CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT, DET. KELVIN WINTERS OF THE 49TH PCT, SHIELD # 4788, TAX ID # 961582 AND P.O. FRANCISCO RODRIGUEZ OF THE 40TH PCT, SHIELD # 6131, TAX ID # 970818**, violated 42 U.S.C. Sec. 1983 in that the defendants, **THE CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT, DET. KELVIN WINTERS OF THE 49TH PCT, SHIELD # 4788, TAX ID # 961582 AND P.O. FRANCISCO RODRIGUEZ OF THE 40TH PCT, SHIELD # 6131, TAX ID # 970818**, acted as persons who under color of any statute, ordinances, regulation, custom or usage of the City of New York and the State of New York, subjected or caused to be subjected, citizens of the United States of America or other persons within the jurisdiction, particularly the plaintiffs thereof to be deprived of their rights, privileges and immunities received by the Constitution and laws of the United States of America and of the State of New York; was subjected to great indignities and humiliation, and pain and distress of mind and was held up to scorn and ridicule, injured their character and reputation, was prevented from attending their usual business and vocation and were injured in their reputation in the community and the acts aforementioned were committed with the aim of injuring and damaging plaintiffs.

67. That the aforesaid occurrence, false arrest and imprisonment of the plaintiffs, malicious prosecution, negligent performance of duties, negligent hiring and

retention, negligent supervision and training and violation of civil rights, was cause solely and wholly by reason of the negligence of the defendants, **THE CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT**, without any negligence on the part of the plaintiffs herein.

68. That by reason of the aforesaid, the plaintiffs have been subjected to great indignities, humiliation and ridicule; was greatly injured in their credit and circumstances; were prevented from performing and transacting their necessary affairs and business; and they were incapacitated from his usual occupation. Upon information and belief, plaintiffs have expended diverse sums of monies, and incurred debt, in an effort to extricate themselves from the imprisonment, indignities and humiliation foisted upon them by the actions of the defendants, their agents, servants and employees, including counsel fees and disbursement and, upon information and belief, will expend further sums in that direction.

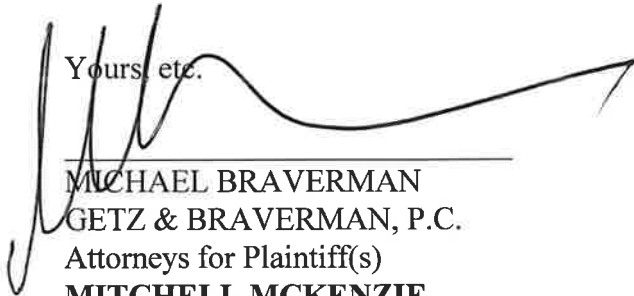
69. That by reason of the aforesaid, the plaintiff requests the following relief:

- a) Punitive damages in an amount which exceeds the jurisdictional limits of all lower courts which otherwise would have jurisdiction.
- b) Compensatory damages in the amount which exceeds the jurisdictional limits of all lower courts which otherwise would have jurisdiction.

WHEREFORE, Plaintiffs demands judgment against the Defendants herein, in a sum exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction, together with the costs and disbursements of this action.

Dated: Bronx, New York
June 28, 2024

Yours, etc.



MICHAEL BRAVERMAN
GETZ & BRAVERMAN, P.C.

Attorneys for Plaintiff(s)

MITCHELL MCKENZIE

AND FRANK BUIE

172 East 161st Street

Bronx, New York 10451

(718) 993-3000

Our File No. 9812

PLAINTIFF'S VERIFICATION

STATE OF NEW YORK

ss:

COUNTY OF BRONX

Mitchell Buckenzie, being duly sworn, says:

I am a Plaintiff in the action herein: I have read the annexed Summons
and Complaint and know the contents thereof, and the same are true to my knowledge,
except those matters therein which are stated to be alleged upon information and belief, and as to
those matters I believe them to be true. My belief as to those matters therein not stated upon
knowledge, is based upon facts, records, and other pertinent information contained in my
personal files.

DATED: Bronx, New York
June 28, 2024

X [Signature]

Sworn to before me this

28th day of June, 2018²⁴

[Signature]
MICHAEL A. BRAVERMAN
NOTARY PUBLIC, STATE OF NEW YORK
BROOKLYN COUNTY 02BB8035120
Notary Public
Certificate Filed in
Bronx County
Commission Expires 12-27-2025

Index No.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

MITCHELL MCKENZIE AND FRANK BUIE,

Plaintiff(s),

- against -

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, DET. KELVIN WINTERS
OF THE 49TH PCT, DET. SQUAD, SHIELD # 4788,
TAX ID # 961582, P.O. FRANCISCO RODRIGUEZ
OF THE 40TH PCT, SHIELD # 6131, TAX ID # 970818
AND P.O. "JOHN DOE" 1-6, names of Police Officers
unknown,

Defendant(s).

SUMMONS AND VERIFIED COMPLAINT

GETZ & BRAVERMAN, P.C.
Attorneys for MITCHELL McKENZIE AND FRANK BUIE
172 East 161st Street
Bronx, New York 10451
(718) 993-3000

TO: